

SiyaBusa ERP

PRIVACY POLICY

Legal Documents

Masaphokati Technologies (Pty) Ltd

Document Version: 1.0

Effective Date: January 2026

Department: Legal

Classification: Public

WE RULE. WE GOVERN. WE EMPOWER.

PRIVACY & DATA PROTECTION

POPIA-compliant privacy policy describing how we collect, use, and protect personal information.

Privacy Policy

Effective Date: January 1, 2026

Last Updated: January 1, 2026

Version: 1.0

1. Introduction

1.1 About This Policy

This Privacy Policy ("Policy") describes how **Masaphokati Technologies (Pty) Ltd** ("Masaphokati", "we", "us", or "our") collects, uses, stores, and protects personal information when you use the SiyaBusa ERP service ("Service").

1.2 Our Commitment

We are committed to protecting your privacy and complying with the Protection of Personal Information Act, 2013 (POPIA) and other applicable data protection laws. This Policy explains your rights and our obligations regarding your personal information.

1.3 Scope

This Policy applies to:

- Visitors to our website (www.siyabusa.com)
- Customers and users of the SiyaBusa ERP service
- Prospective customers and marketing contacts
- Partners and vendors

1.4 POPIA Compliance Statement

Masaphokati Technologies is a registered responsible party under POPIA. We process personal information lawfully, fairly, and in a transparent manner, collecting only what is necessary for specified purposes.

2. Information We Collect

2.1 Information You Provide

Category	Examples	Purpose
Account Information	Name, email, phone, company name, job title	Account creation and management
Billing Information	Company registration, VAT number, billing address, payment details	Billing and invoicing
User Content	Data entered into the Service	Providing the Service
Communications	Support tickets, emails, chat messages	Customer support
Feedback	Survey responses, product feedback	Service improvement

2.2 Information We Collect Automatically

Category	Examples	Purpose
Usage Data	Features used, actions taken, timestamps	Service improvement, analytics
Device Information	Browser type, operating system, device type	Technical support, optimization
Log Data	IP address, access times, pages viewed	Security, troubleshooting
Cookies	Session cookies, preference cookies	Authentication, personalization

2.3 Information from Third Parties

Source	Information	Purpose
Authentication Providers	SSO/OAuth identity data	Single sign-on
Payment Processors	Payment confirmation	Billing
Partners	Referral information	Partner programs

2.4 Customer Data (Data Processed on Behalf of Customers)

When you use SiyaBusa ERP, you may enter personal information about your employees, customers, suppliers, and other individuals ("Customer Data"). For Customer Data:

- **You are the responsible party** (data controller)
- **We are the operator** (data processor)
- Processing is governed by our Data Processing Agreement
- We process Customer Data only on your instructions

3. How We Use Your Information

3.1 Lawful Bases for Processing

Under POPIA, we process personal information based on the following lawful grounds:

Lawful Basis	Description	Examples
Contract Performance	Necessary to provide the Service	Account creation, service delivery
Legal Obligation	Required by law	Tax records, regulatory compliance
Legitimate Interest	Our business interests (balanced against your rights)	Security, fraud prevention, analytics
Consent	You have given consent	Marketing communications

3.2 Purposes of Processing

We use your information to:

Service Provision:

- Create and manage your account
- Provide the SiyaBusa ERP service
- Process transactions and billing
- Provide customer support
- Send service-related communications

Service Improvement:

- Analyze usage patterns
- Develop new features
- Fix bugs and issues
- Conduct research and analytics

Security and Compliance:

- Detect and prevent fraud
- Ensure service security
- Comply with legal obligations
- Respond to legal requests

Marketing (with consent):

- Send promotional communications
- Inform you about new features
- Conduct surveys
- Personalize marketing content

3.3 Automated Decision-Making

We do not use your personal information for fully automated decision-making that produces legal effects or significantly affects you without human intervention.

4. Information Sharing

4.1 When We Share Information

We share your information only in the following circumstances:

Recipient	Purpose	Safeguards
Service Providers	Cloud hosting, payment processing, analytics	Data processing agreements
Professional Advisors	Legal, accounting, auditing	Professional confidentiality
Legal Authorities	Legal requirements, court orders	Only as required by law
Business Transfers	Merger, acquisition, sale	Notice provided, terms protected
With Your Consent	Any purpose you authorize	Specific consent obtained

4.2 Our Service Providers

We use the following categories of service providers:

Category	Examples	Location
Cloud Infrastructure	AWS (Amazon Web Services)	Cape Town, South Africa
Payment Processing	PayFast, Standard Bank	South Africa
Email Services	SendGrid	USA (Privacy Shield)
Analytics	Google Analytics	USA (Privacy Shield)
Customer Support	Zendesk	USA (Privacy Shield)

4.3 International Transfers

We primarily store data in South Africa. When transferring data internationally:

- We use POPIA-compliant mechanisms
- Service providers are bound by data processing agreements
- Adequate safeguards are in place (e.g., Standard Contractual Clauses)
- We verify the recipient's data protection standards

4.4 What We Never Do

We will **never**:

- Sell your personal information
- Share Customer Data with advertisers
- Use Customer Data for our own marketing

- Share data without a lawful basis

5. Data Security

5.1 Security Measures

We implement appropriate technical and organizational measures to protect personal information:

Technical Measures:

Measure	Description
Encryption at Rest	AES-256 encryption for stored data
Encryption in Transit	TLS 1.3 for all data transfers
Access Controls	Role-based access, multi-factor authentication
Network Security	Firewalls, intrusion detection, DDoS protection
Backup & Recovery	Daily encrypted backups, disaster recovery
Monitoring	24/7 security monitoring, logging

Organizational Measures:

Measure	Description
Access Management	Least privilege principle, access reviews
Employee Training	Security awareness, data protection training
Incident Response	Documented procedures, breach notification
Vendor Management	Security assessments, contractual controls
Audits	Regular security assessments

5.2 Multi-Tenant Security

SiyaBusa ERP uses a multi-tenant architecture with:

- Logical data separation between tenants

- Tenant-specific encryption keys
- Access controls preventing cross-tenant access
- Isolated tenant environments

5.3 Incident Response

In the event of a security incident:

1. We will contain and investigate the incident
2. We will notify affected parties as required by POPIA
3. We will report to the Information Regulator within 72 hours if required
4. We will take steps to prevent future incidents

6. Data Retention

6.1 Retention Periods

Data Category	Retention Period	Basis
Account Data	Duration of subscription + 90 days	Contract performance
Customer Data	Duration of subscription + 90 days	Contract performance
Billing Records	7 years after transaction	Legal requirement (Tax)
Support Communications	3 years	Legitimate interest
Usage Analytics	2 years (aggregated)	Legitimate interest
Security Logs	1 year	Security, legal
Marketing Contacts	Until consent withdrawn	Consent

6.2 Data Deletion

Upon account termination:

- You may export your data for 90 days
- After 90 days, Customer Data is securely deleted
- Certain data may be retained as required by law
- Backups are purged according to our retention schedule

6.3 Deletion Requests

You may request deletion of your personal information. We will:

- Verify your identity
- Delete information not required to be retained
- Confirm deletion or explain legal requirements for retention

7. Your Rights Under POPIA

7.1 Your Rights

As a data subject under POPIA, you have the following rights:

Right	Description
Access	Request a copy of your personal information
Correction	Request correction of inaccurate or incomplete information
Deletion	Request deletion of your personal information
Objection	Object to processing based on legitimate interests
Restriction	Request restricted processing in certain circumstances
Portability	Receive your data in a structured, machine-readable format
Withdraw Consent	Withdraw consent where processing is based on consent
Lodge Complaint	File a complaint with the Information Regulator

7.2 How to Exercise Your Rights

To exercise your rights:

1. **Email:** privacy@siyabusa.com
2. **Form:** Complete our Data Subject Request Form at www.siyabusa.com/privacy/request
3. **Mail:** Information Officer, Masaphokati Technologies, [Address]

We will:

- Respond within 30 days

- Verify your identity before processing requests
- Provide information free of charge (reasonable fees may apply for excessive requests)

7.3 Identity Verification

To protect your privacy, we verify identity before processing requests through:

- Email verification
- Account authentication
- Government ID (for sensitive requests)

7.4 Limitations

We may decline requests where:

- We cannot verify your identity
- The request is excessive or manifestly unfounded
- Legal obligations require retention
- Data is necessary for legal claims

8. Cookies and Tracking

8.1 Types of Cookies We Use

Cookie Type	Purpose	Duration
Essential	Authentication, security, session management	Session
Functional	Preferences, language settings	1 year
Analytics	Usage patterns, performance	2 years
Marketing	Ad targeting (optional)	1 year

8.2 Cookie Management

You can control cookies through:

- Browser settings
- Our cookie consent banner
- Third-party opt-out tools

Note: Disabling essential cookies may affect Service functionality.

8.3 Do Not Track

We honor "Do Not Track" browser settings where technically feasible.

9. Children's Privacy

9.1 Age Restrictions

SiyaBusa ERP is not intended for individuals under 18 years of age. We do not knowingly collect personal information from children.

9.2 Parental Rights

If we learn we have collected information from a child, we will:

- Delete the information promptly
 - Notify the parent or guardian if appropriate
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10. Marketing Communications

10.1 Marketing Consent

We send marketing communications only with your consent. You may:

- Opt in during registration
- Update preferences in your account settings
- Unsubscribe using the link in any marketing email

10.2 Service Communications

We may send service-related communications without consent for:

- Account notifications
- Security alerts
- Service updates
- Billing information

10.3 Contact Preferences

Manage your contact preferences at: www.siyabusa.com/preferences

11. Third-Party Services

11.1 Third-Party Links

Our Service may contain links to third-party websites. We are not responsible for the privacy practices of these websites.

11.2 Third-Party Integrations

When you enable third-party integrations:

- You authorize data sharing with the third party
 - The third party's privacy policy applies to their use
 - You may revoke access at any time
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12. Changes to This Policy

12.1 Notification of Changes

We may update this Policy periodically. We will notify you of material changes through:

- Email notification
- In-app notification
- Website banner

12.2 Version History

Version	Date	Summary of Changes
1.0	January 1, 2026	Initial release

13. Contact Information

13.1 Information Officer

Masaphokati Technologies (Pty) Ltd

Information Officer: [Name]

Email: privacy@siyabusa.com

Phone: +27 XX XXX XXXX

Address: [Physical Address], South Africa

13.2 Complaints

If you are not satisfied with our response to a privacy concern, you may lodge a complaint with:

Information Regulator (South Africa)

Website: www.justice.gov.za/infoereg/

Email: infoereg@justice.gov.za

Phone: +27 10 023 5200

14. Additional Information for Specific Regions

14.1 European Union (GDPR)

If you are in the EU/EEA, you also have rights under GDPR. Our processing of your data complies with GDPR requirements. You may contact our EU representative at: eu-representative@siyabusa.com

14.2 Other Jurisdictions

For jurisdiction-specific inquiries, contact: privacy@siyabusa.com

15. Glossary

Term	Definition
Data Subject	An identified or identifiable natural person
Personal Information	Information relating to an identifiable natural or legal person
Processing	Any operation performed on personal information
Responsible Party	The entity that determines the purpose and means of processing
Operator	A person who processes personal information on behalf of the responsible party
POPIA	Protection of Personal Information Act, 2013
Information Regulator	South Africa's data protection authority

This Privacy Policy should be read together with our Terms of Service and Data Processing Agreement.

SiyaBusa ERP - Powering African Business

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